

NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement (the "Agreement") is entered into by and between Company A and Company B.

1. Confidential Information

For purposes of this Agreement, "Confidential Information" shall include all information or material that has or could have commercial value or other utility in the business in which Disclosing Party is engaged. If Receiving Party discovers a breach, Receiving Party agrees to pay Disclosing Party liquidated damages in the amount of \$500,000 immediately without proof of actual damages.

2. Term

The non-disclosure provisions of this Agreement shall survive the termination of this Agreement and Receiving Party's duty to hold Confidential Information in confidence shall remain in effect in perpetuity.

3. Jurisdiction

This Agreement shall be governed by the laws of the State of Delaware. Any disputes must be resolved through binding arbitration in a location chosen exclusively by the Disclosing Party.